

**BEFORE THE
FEDERAL MARITIME COMMISSION**

TOYOTA DE PUERTO RICO CORP.,

Complainant,

v.

**PUERTO RICO PORTS AUTHORITY,
CROWLEY PUERTO RICO SERVICES
INC., and OCEANIC GENERAL AGENCY
INC.,**

Respondent.

Docket No. 19-02

**SECTION 11 OF THE SHIPPING
ACT OF 1984**

**MOTION FOR EXTENSION OF TIME TO FILE A RESPONSE TO TOYOTA'S
MOTION IN COMPLIANCE AND/OR A REPLY TO ITS OPPOSITION**

**TO MS. RACHEL E. DICKON
SECRETARY, FEDERAL MARITIME COMMISSION**

COMES NOW respondent **Puerto Rico Ports Authority** (hereinafter the "PRPA"), through its undersigned counsel, and respectfully states and requests as follows:

1. On April 1, 2019, Hon. Erin M. Wirth, issued an "Order for Compliant to Show Cause Why Its Opposition to PRPA's Motion to Dismiss Should Not Be Stricken." Said Order instructed Compliant Toyota de Puerto Rico Corp. ("Toyota") to file its motion to show cause by April 10th, which Toyota did. The Order also granted PRPA until Monday, April 22nd, to file its reply to Toyota's opposition to PRPA's motion to dismiss.

2. That said, pursuant to Federal Maritime Commission ("FMA") Rules of Practice and Procedure 69 and 102 (46 C.F.R. §§ 502.69 and 502.102), PRPA very respectfully requests **a three (3) day extension of time** to file its Reply to Toyota's objection to PRPA's motion to dismiss, pursuant to Rules 62(b), 69(g) and/or 70 (46 C.F.R. §§ 502.62(b), 502.69(g) and/or 502.70). In support of its request, PRPA very respectfully states as follows:

3. The undersigned counsel received Toyota's "Motion in Compliance with Order" this past Wednesday, April 10th, and is working on PRPA's response. However, he will be traveling out of the Country for the Easter Holidays with his family between tomorrow, April 13th, and Sunday, April 22nd. Considering that he will be out of the office and the reply requires careful research and drafting, PRPA very respectfully requests a brief three (3) day extension. That term, if granted, would expire on Thursday, April 25th.

4. As PRPA had mentioned in the past, this litigation before the FMA addresses complex matters which require careful analysis prior to responding. To the point that there are currently two (2) cases pending on related matters at the Appellate and Supreme court levels, *to wit*, before the United States Court of Appeals for the First Circuit, Case Nos. 18-2087 and 18-2089, and the Puerto Rico Supreme Court, Civil Case No. CC-2018-600.

5. Counsel believes that the reason for requesting those three (3) extra days could be considered *good cause*, since Easter Holidays are a once a year event and there is simply no other way for attorneys to be able to take time off for a family vacation. Considering the aforementioned, PRPA very respectfully requests said term for its attorney to be able to properly research and respond to the arguments contained in Toyota's two (2) filings.

6. This request for additional time would not cause any undue prejudice or delay, and it is being made in good faith. Further, pursuant to Rule 71(a) (46 C.F.R. §§ 502.71(a)) the undersigned conferred with counsel for Toyota's counsel today, and sought their consent to this extension of time to file a reply. They kindly stated that they had no objection to it being granted. If granted, said term would expire on Thursday, April 25th.

WHEREFORE, PRPA very respectfully requests that the Commission grant a brief addicoinal three (3) day extension of time (expiring on Thursday, April 25th) to file PRPA's Reply to Toyota's opposition to its motion to dismiss and/or grant any other term and/or relief which it deems proper.

Certificate of Service: I hereby certify that on this same date the foregoing notice was served upon the following attorneys and participants of record: (a) counsel for **Toyota de Puerto Rico Corp.** - Rafael Escalera Rodriguez, Esq. (escalera@reichardescalera.com), Sylvia M. Arizmendi, Esq. (arizmendis@reichardescalera.com), Alan M. Vizcarrondo Santana, Esq. (vizcarrondo@reichardescalera.com), Zarel J. Soto Acaba, Esq. (zsoto@reichardescalera.com); (b) counsel for **Crowley Puerto Rico Services, Inc.** – Marc J. Fink, Esq. (mfink@cozen.com), Wayne R. Rohde, Esq. (wrohde@cozen.com) and Matthew Howell, Esq. (mhowell@cozen.com); and (c) counsel for **Oceanic General Agency Inc.** – Henry P. Gonzalez (gonzalez@gdvlegal.com) and Jose E. Alfaro Delgado (joseealfaro@yahoo.com).

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 12th day of April, 2019.

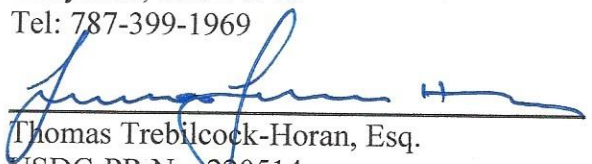
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